

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORKKEMELY VEGA, SUSAN FERNANDEZ, and ERICK
HERNANDEZ,

Plaintiffs,

-against-

THE CITY OF NEW YORK, NYPD DETECTIVE
RHYAN NELSON, Shield No. 6861, NYPD DETECTIVE
MICHAEL DAPPOLONIA, Shield No. 6766, NYPD
DETECTIVE JUAN DIAZ, Shield No. 3767 and NYPD
POLICE OFFICERS JOHN DOES NUMBERS ONE
THROUGH TEN,

Defendants.

SUMMONS

Index No.:

The Basis of Venue is:
Location of IncidentPlaintiffs designate New York
County as the place of trial.**To the above named Defendants:**

You are hereby summoned to answer the Verified Complaint in this action, and to serve a copy of your Verified Answer to the Verified Complaint, or, if the Verified Complaint is not served with this Summons, to serve a notice of appearance on the Plaintiffs' attorneys within twenty days after the service of this Summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
July 19, 2022

Yours, etc.

C. Cass Luskin
C. Cass Luskin, Esq.
Shulman & Hill, PLLC
Attorneys for Plaintiff
1 State Street Plaza
15th Floor
New York, New York 10004
(212) 221-1000

TO: THE CITY OF NEW YORK, Corporation Counsel, 100 Church Street, NY, NY 10007

NYPD DETECTIVE RHYAN NELSON, Shield No. 6861– Narcotics Borough
Manhattan North -- *via* Detectives Office, Room 110-A, 1 Police Plaza, NY 10038

NYPD DETECTIVE MICHAEL DAPPOLONIA, Shield No. 6766 – Narcotics Borough
Manhattan North – *via* Detectives Office, Room 110-A, 1 Police Plaza, NY 10038

NYPD DETECTIVE JUAN DIAZ, Shield No. 3767 – Criminal Intelligence Section --
via Detectives Office, Room 110-A, 1 Police Plaza, NY 10038

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INDEX NO.:

VERIFIED COMPLAINT

JURY TRIAL DEMANDED

Plaintiffs VEGA, FERNANDEZ and HERNANDEZ, by their attorneys, Shulman and Hill,
PLLC, as and for their Verified Complaint herein, allege upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of Plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the Fourth, Fifth and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. On March 4, 2022, at approximately 3:00 p.m., Plaintiffs, while lawfully in the vicinity of 204th Street and Broadway, County of New York, New York, were subject to an unlawful arrest, detention, assault, battery and excessive use of force by defendant Police Officers, who subsequently arrested Plaintiffs, forwarded allegations they knew to be false to prosecuting authorities, and maliciously prosecuted Plaintiffs. Plaintiffs were deprived of their constitutional, common law and statutory rights when the individual defendants unlawfully stopped, detained, assaulted, battered, subjected to excessive force, passed along false accusations to prosecuting attorneys and engaged in the malicious prosecution of Plaintiff, in violation of the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution, the common law and the laws of the State of New York.

PARTIES

2. Plaintiff KEMELY VEGA is a resident of the state of New York.
3. Plaintiff SUSAN FERNANDEZ is a resident of the state of New York.

4. Plaintiff ERICK HERNANDEZ is a resident of the state of New York.

5. NYPD POLICE OFFICER RHYAN NELSON, Shield No. 6861 is and was at all times relevant herein a Detective with the New York City Police Department.

6. NYPD POLICE OFFICER RHYAN NELSON, Shield No. 6861 is being sued in their individual and official capacity.

7. Currently and at all times relevant herein, NYPD POLICE OFFICER RHYAN NELSON, Shield No. 6861 was assigned to the Narcotics Borough Manhattan North of the NYPD.

8. As the Patrol Borough Manhattan North is an assignment that maintains a covert location, NYPD POLICE OFFICER RHYAN NELSON, Shield No. 6861, therefore accepts service by the NYPD via the Detectives Office, Room 110-A, at 1 Police Plaza

9. NYPD POLICE OFFICER MICHAEL DAPPOLONIA, Shield No. 6766 is and was at all times relevant herein an Officer with the New York City Police Department.

10. NYPD POLICE OFFICER MICHAEL DAPPOLONIA, Shield No. 6766 is being sued in their individual and official capacity.

11. Currently and at all times relevant herein, NYPD POLICE OFFICER MICHAEL DAPPOLONIA, Shield No. 6766 was assigned to the Narcotics Borough Manhattan North of the NYPD.

12. As the Patrol Borough Manhattan North is an assignment that maintains a covert location, NYPD POLICE OFFICER MICHAEL DAPPOLONIA, Shield No. 6766, therefore accepts service by the NYPD via the Detectives Office, Room 110-A, at 1 Police Plaza

13. NYPD OFFICER JUAN DIAZ, Shield No. 3767 is and was at all times relevant herein an Officer with the New York City Police Department.

14. NYPD OFFICER JUAN DIAZ, Shield No. 3767 is being sued in their individual and official capacity.

15. Currently and at all times relevant herein, NYPD OFFICER JUAN DIAZ, Shield No. 3767 was assigned to the Criminal Intelligence Section of the NYPD.

16. As the Criminal Intelligence Section is an assignment that maintains a covert location, NYPD OFFICER JUAN DIAZ, Shield No. 3767, therefore accepts service by the NYPD via the Detectives Office, Room 110-A, at 1 Police Plaza

17. NYPD Police Officers John Does Numbers One through Ten are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.

18. NYPD Police Officers John Does Numbers One through Ten are being sued in their individual and official capacities.

19. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

20. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

21. Plaintiffs in furtherance of their causes of action brought pursuant to New York State law filed a timely Notice of Claim against the City of New York in compliance with the Municipal Law Section 50 and in accordance with New York State law.

22. In accordance with New York State law and General Municipal Law Section 50, Plaintiffs testified at hearings held pursuant to General Municipal Law Section 50-H.

23. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and the City of New York has failed to pay or adjust the claims.

24. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

25. Plaintiffs have sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

26. On March 4th, 2022, at approximately 3:00 p.m., Plaintiffs were in vicinity of 204th Street and Broadway, County of New York, State of New York, when Plaintiffs were unlawfully arrested.

27. Plaintiffs KEMELY VEGA and SUSAN FERNANDEZ were inside a lawfully parked vehicle discussing where they were going to get lunch when the vehicle was approached and surrounded by three unmarked cop cars.

28. Plaintiff ERICK HERNANDEZ was sitting on a bench in the vicinity of the vehicle when the defendant Police Officers unmarked police cars approached and surrounded the vehicle.

29. None of the defendant Police Officers were in uniform.

30. Neither the Plaintiffs nor anyone in the Plaintiff's immediate vicinity were committing a crime, violating city ordinances, or otherwise providing defendant officers with any lawful basis to approach them.

31. Defendant Police Officer approached Plaintiff ERICK HERNANDEZ while he was sitting and minding his own business on a bench.

32. Defendant Police Officer demanded that Plaintiffs KEMELY VEGA and SUSAN FERNANDEZ exit the vehicle.

33. Plaintiffs KEMELY VEGA and SUSAN FERNANDEZ complied with the Defendant Police Officer's command and exited the vehicle and yet were still shoved by defendant officers.

34. At this time, without any lawful basis or reason therefore, defendant Police Officers began to arrest the Plaintiffs.

35. Plaintiffs were immediately and without probable cause, shackled with metal handcuffs and subjected to an illegal search of their person by Defendant Police Officers.

36. The search of Plaintiffs yielded no contraband whatsoever.

37. Defendant Police Officers began interrogating Plaintiffs by asking leading questions regarding current situations that were happening in the surrounding area.

38. Defendant Police Officers then ordered Plaintiffs to sit on the freezing cold sidewalk and they all complied.

39. Defendant Police Officers searched the vehicle and found no contraband.

40. Plaintiffs were not told why they had been arrested or what they were being charged for.

41. After approximately thirty (30) minutes of sitting outside on the freezing cold sidewalk, Defendant Policers Officers placed them in a crowded NYPD transport van.

42. Plaintiffs were locked in the NYPD transport van for approximately three and a half (3.5) hours.

43. Defendant Police Officers then brought Plaintiffs to an NYPD Police Precinct where they were again searched without probable cause, and again defendant Officers failed to find any contraband.

44. Defendant Police Officers then illegally interrogated, fingerprinted, and photographed Plaintiffs.

45. Thereafter, Plaintiffs were placed in a holding cell where they were subjected to taunting, abusive language, and sexual harassment by Defendant Police Officers.

46. Plaintiffs KEMELY VEGA and SUSAN FERNANDEZ were placed in the same holding cell and Plaintiff ERICK HERNANDEZ was in a separate holding cell.

47. Defendant John Doe Officer began making crude remarks to Plaintiff HERNADNEZ, such as “What do you have in your pants?” “Do you like dick?” “Put your pants down, let me see what you have.” And “let me see that dick.”

48. Surrounding Defendant Police Officers were smirking and were failing to intervene as Plaintiff HERNADNEZ was sexually harassed by Defendant Officer John Doe.

49. Plaintiffs were kept at the precinct for approximately 8.5 hours.

50. Plaintiffs were still not informed of what they were being charged with at the time.

51. Plaintiffs were eventually brought to New York County Central Booking on March 4th, 2022, at approximately 11:00 p.m.

52. Despite telling defendant Officers that she was anemic, needed medication and was prone to illness if she was denied food, defendant officers had done nothing to assist Plaintiff VEGA.

53. As a result of this mistreatment and the denial of food, iron medication or medical treatment since her arrest, Plaintiff VEGA required emergency medical assistance when she arrived at Central Bookings.

54. Plaintiff KEMELY VEGA was then taken to New York Downtown Hospital to be treated.

55. While at the hospital, Defendant NYPD Officers refused to take the handcuffs off of Plaintiff’s wrists, thereby interfering with her medical treatment.

56. Plaintiffs spent the night in New York County Central Booking and were released on March 5th, 2022, in the evening.

57. After approximately twenty-six (26) hours in NYPD custody client was told by Defendant Police Officers that the District Attorney’s Office had declined to prosecute their case and that they were free to go.

58. All Plaintiffs suffered serious psychological and emotional injury from the trauma of the false arrest and the extreme stress of defending themselves against unfounded criminal charges subsequently.

59. Plaintiff SUSAN FERNANDEZ sought mental health care and is now seeing a licensed therapist due to this traumatic event.

60. At no time relevant herein did Plaintiffs commit a crime or violate the law in any way, nor did the police officers have an objective reason to accuse Plaintiffs of committing a crime or violating the law in any way.

61. Nevertheless, Plaintiffs were unlawfully arrested and handcuffed by defendant officers without legal justification or probable cause, unlawfully fingerprinted, photographed and searched, and unlawfully detained.

62. Some of the police officer defendants observed the violation of Plaintiffs' rights under the Constitution of the United States and New York State Law and did nothing to prevent their fellow officers from unjustifiably verbally assaulting Plaintiffs.

63. The unlawful verbal assault by the defendant Police Officer cause Plaintiffs to sustain psychological, and emotional trauma.

FIRST CAUSE OF ACTION
Unlawful Stop, Question, and Search

64. The Plaintiff repeats and realleges the foregoing paragraphs as if the same were fully set forth at length herein.

65. The illegal approach, pursuit, stop, and grab employed by defendants herein terminated Plaintiff's freedom of movement through means intentionally applied.

66. The conduct of defendants in approaching, stopping, and grabbing Plaintiffs was performed under color of law and without any reasonable suspicion of criminality or other constitutionally required grounds.

67. As a direct and proximate result of such acts, defendants deprived Plaintiffs of their rights under the laws of the State of New York.

68. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

69. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

SECOND CAUSE OF ACTION

Violation of Fourth and Fourteenth Amendment Rights: Unlawful Seizure and Deprivation of Liberty

70. The Plaintiffs repeat and reallege the foregoing paragraphs as if the same were fully set forth at length herein.

71. The individually named police officer defendants, while acting in concert and within the scope of their authority, caused Plaintiffs to be seized, unlawfully searched, falsely arrested, and falsely imprisoned, and maliciously prosecuted without reasonable suspicion and/or probable cause, in violation of Plaintiffs' right to be free of an unreasonable seizure under the Fourth Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

72. As a result of the aforementioned conduct of defendants, Plaintiffs sustained injuries, including but not limited to physical, emotional and psychological injuries.

THIRD CAUSE OF ACTION

False Imprisonment

73. The Plaintiffs repeat and reallege the foregoing paragraphs as if the same were fully set forth at length herein.

74. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine Plaintiffs and, in fact, confined Plaintiffs, and Plaintiffs were conscious of the confinement. In addition, Plaintiffs did not consent to the confinement and the confinement was not otherwise privileged.

75. As a direct and proximate result of such acts, defendants deprived Plaintiffs of their rights under the laws of the State of New York and the United States Constitution.

76. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

77. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

78. As a result of the aforementioned conduct of defendants, Plaintiffs sustained injuries, including but not limited to loss of liberty, emotional and psychological injuries.

FOURTH CAUSE OF ACTION

Violation of Plaintiff's Fourth And Fourteenth Amendment Rights: Excessive Force

79. The Plaintiff repeats, reiterates and realleges each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.

80. The use of excessive force by defendants by roughly handcuffing, grabbing, shoving and detaining Plaintiffs constituted objectively unreasonable physical seizures of Plaintiff in violation of his rights under the Fourth and Fourteenth Amendments to the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

81. Defendants were at all times agents, servants, and employees acting within the scope of his employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

FIFTH CAUSE OF ACTION

Assault

82. The Plaintiffs repeat, reiterate and reallege each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.

83. Defendants, their agents, servants and employees, acting within the scope of their employment, intentionally, willfully and maliciously assaulted Plaintiff in that they had the real or apparent ability to cause imminent harmful and/or offensive bodily contact and intentionally did a violent and/or menacing act which threatened such contact to the Plaintiff, that such acts caused apprehension of such contact in the Plaintiff.

84. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the State of New York.

85. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

86. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

87. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

SIXTH CAUSE OF ACTION

Battery

88. The Plaintiffs repeat, reiterate and reallege each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.

89. Defendants, their agents, servants and employees, acting within the scope of their employment, intentionally, willfully and maliciously battered Plaintiff, when they, in a hostile and/or offensive manner grabbed and pinned Plaintiff with his arms behind his head and roughly handcuffed Plaintiff, effecting an arrest of Plaintiff without his consent and with the intention of causing harmful and/or offensive bodily contact to the Plaintiff and caused such battery.

90. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the State of New York.

91. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

92. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

93. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

SEVENTH CAUSE OF ACTION

Negligent Hiring, Retention, Training and Supervision

94. The Plaintiff repeats, reiterates and realleges each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.

95. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise defendants, individuals who were unfit for the performance of police duties on the aforementioned dates at the aforementioned locations.

96. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to physical, emotional and psychological injuries.

EIGHTH CAUSE OF ACTION

Failure to Intervene

97. The Plaintiff repeats, reiterates and realleges each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.

98. The defendants that did not physically touch Plaintiff, but were present when other officers verbally taunted Plaintiff's Constitutional Rights had an affirmative duty to intervene on behalf of Plaintiff, whose constitutional rights were being violated in their presence by other officers.

99. Defendants failed to intervene to prevent the unlawful conduct described herein.

100. As a direct and proximate result of such acts, defendants deprived Plaintiff of their rights under the laws of the State of New York.

101. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

102. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

103. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

SEVENTH CAUSE OF ACTION

Individual Defendant Officer's Violation of Plaintiff's AC 8-802 Rights

104. The Plaintiff repeats and realleges the foregoing paragraphs as if the same were fully set forth at length herein.

105. The acts of Defendant Officers constituted conduct under color of any law, ordinance, rule, regulation, custom or usage.

106. The acts of Defendant Officers caused Plaintiff to be deprived of her rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 802, to wit: to be secure in her person, house, papers, and effects against unreasonable searches and seizures, and to be secure against the use of excessive force regardless of whether such force is used in connection with a search or seizure.

107. The Defendant Officers, while in uniform, unlawfully seized, frisked, shoved and searched the Plaintiffs, before detaining plaintiffs and further causing their detention for approximately 12 hours.

108. By reason of the acts and omissions by Defendants described above, Plaintiff has endured physical and emotional injuries and was otherwise damaged and injured.

EIGHTH CAUSE OF ACTION

Individual Defendant Officer's Failure to Intervene in Violation of Plaintiff's AC 8-802 Rights

109. The Plaintiff repeats and realleges the foregoing paragraphs as if the same were fully set forth at length herein.

110. The acts of Defendant Officers constituted conduct under color of any law, ordinance, rule, regulation, custom or usage.

111. Defendant Officers had a duty to protect Plaintiff from violations of her rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 802, to wit: to be secure in her person, house, papers, and effects against unreasonable searches and seizures, and to be secure against the use of excessive force regardless of whether such force is used in connection with a search or seizure.

112. The Defendants that did not physically touch Plaintiff but were present when other officers violated Plaintiff's AC 8-802 right against unreasonable search and seizure and excessive force had an affirmative duty to intervene on behalf of Plaintiff, whose constitutional rights were being violated in their presence by other officers.

113. Defendants failed to intervene to prevent the unlawful conduct described herein, thereby failed in their duty to intervene to protect Plaintiff from violation of her rights.

114. By reason of the acts and omissions by Defendants described above, Plaintiff has endured physical and emotional injuries and was otherwise damaged and injured.

NINTH CAUSE OF ACTION
City-Employer's Liability for Defendant Officer's Violation of
Plaintiff's AC 8-802 Rights

115. The Plaintiff repeats and realleges the foregoing paragraphs as if the same were fully set forth at length herein.

116. Defendant Officers are "covered individuals" as defined in 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 - 801 in that they are employees of the Police Department or persons appointed by the Police Commissioner as a Special Patrolmen.

117. The City of New York, as the employer of the covered individual Defendant Officers, is liable to the Plaintiff for the wrongdoing of the covered individual Defendant Officers.

118. The acts of Defendant Officers constituted conduct under color of any law, ordinance, rule, regulation, custom or usage.

119. The acts of Defendant Officers caused Plaintiff to be deprived of her rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 802, to wit: to be secure in her person, house, papers, and effects against unreasonable searches and seizures, and to be secure against the use of excessive force regardless of whether such force is used in connection with a search or seizure.

120. The Defendant Officers, while in uniform, unlawfully seized, frisked, shoved and searched the Plaintiffs, before detaining plaintiffs and further causing their detention for approximately 12 hours.

121. By reason of the acts and omissions by Defendants described above, Plaintiff has endured physical and emotional injuries and was otherwise damaged and injured.

TENTH CAUSE OF ACTION

City-Employer's Liability for Defendant Officer's Failure to Intervene in Violation of Plaintiff's AC 8-802 Rights

122. The Plaintiff repeats and realleges the foregoing paragraphs as if the same were fully set forth at length herein.

123. Defendant Officers are "covered individuals" as defined in 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 - 801 in that they are employees of the Police Department or persons appointed by the Police Commissioner as a Special Patrolmen.

124. The City of New York, as the employer of the covered individual Defendant Officers, is liable to the Plaintiff for the wrongdoing of the covered individual Defendant Officers.

125. The acts of Defendant Officers constituted conduct under color of any law, ordinance, rule, regulation, custom or usage.

126. Defendant Officers had a duty to protect Plaintiff from violations of her rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 802, to wit: to be secure in her person, house, papers, and effects against unreasonable searches and seizures, and to be secure against the use of excessive force regardless of whether such force is used in connection with a search or seizure.

127. The Defendants that did not physically touch Plaintiff but were present when other officers violated Plaintiff's AC 8 – 802 rights against unreasonable search and seizure and excessive force had an affirmative duty to intervene on behalf of Plaintiff, whose constitutional rights were being violated in their presence by other officers.

128. Defendants failed to intervene to prevent the unlawful conduct described herein, thereby failed in their duty to intervene to protect Plaintiff from violation of her rights.

129. By reason of the acts and omissions by Defendants described above, Plaintiff has endured physical and emotional injuries and was otherwise damaged and injured.

ELEVENTH CAUSE OF ACTION

Violation of Article I, § 12 of the New York State Constitution

130. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

131. Such conduct breached the protections guaranteed to plaintiff by the New York State Constitution, including but not limited to, Article 1, §§ 1, 6, 8, 9, 11, and 12, and including the following rights:

- i. freedom from unreasonable search and seizure of her person and property;
- ii. freedom from arrest without probable cause;
- iii. freedom from false imprisonment, that being wrongfully detained without good faith, reasonable suspicion, or legal justification, and of which wrongful detention plaintiff was aware and did not consent;
- iv. freedom from the lodging of false charges against him by police officers and prosecutors, including on information and belief, by some or all of the individual defendants; and
- v. freedom from deprivation of liberty without due process of law.

132. As a direct and proximate result of defendants' deprivations of Plaintiff's rights, privileges, and immunities guaranteed by the New York State Constitution, Plaintiff suffered physical, economic and emotional injuries, as well as a deprivation of liberty.

133. As a result of the above tortious conduct, Plaintiff was caused to suffer physical, economic, and emotional injuries, as well as a deprivation of liberty.

134. As a result of the above unconstitutional conduct, the City of New York is liable for the conduct of the Individual Defendants and any damages they caused under the doctrine of *respondeat superior*.

JURY DEMAND

135. Plaintiffs hereby demand trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, Plaintiffs demand judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys' fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law, and that the Plaintiffs recover the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
July 19, 2022

By: C. Cass Luskin
C. Cass Luskin, Esq.
Shulman & Hill, PLLC
Attorneys for Plaintiff
1 State Street Plaza
15th Floor
New York, New York 10004
(212) 221-1000

TO: THE CITY OF NEW YORK, Corporation Counsel, 100 Church Street, NY, NY 10007

NYPD DETECTIVE RHYAN NELSON, Shield No. 6861 – Narcotics Borough
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via Detectives Office, Room 110-A, 1 Police Plaza, NY 10038

ATTORNEY'S VERIFICATION

C. CASS LUSKIN, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **SHULMAN-HILL PLLC**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is because Plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York
July 19, 2022

C. Cass Luskin
C. CASS LUSKIN